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Seneviratne v. Avanzado, et al.

Cross-Defendants' Motion for Summary

Adjudication of Claims in Third Amended Cross-Complaint

BACKGROUND

On January 3, 2025, Plaintiff Saman

Seneviratne, individually and as trustee of Seneviratne Family

Residence Trust of 2018, filed the operative first amended complaint against

Defendants Melvin Avanzado, The Avanzado Law Firm and Kirsch & Jansen, LLP,

asserting causes of action for declaratory relief, breach of contract and

fraud. Seneviratne

alleges he was represented by Defendant attorney Avanzado with respect to

claims against UCLA for medical malpractice. Seneviratne alleges this attorney client

relationship continued through the time that Avanzado agreed to sell his house

to Seneviratne through Seneviratne's trust. Seneviratne alleges that he was to purchase the property for

\$780,000, plus the parties contemplated a loan of up to \$400,000 to

Avanzado to pay off tax liens and a \$55,000 line of credit against the

Property, that was to be forgiven at closing. The property was subject to two

tax liens of \$108,483.49 and \$29,615.92 and was mortgaged and refinanced three

times with a final mortgage loan of \$1,150,000. Seneviratne alleges that Avanzado never reduced

the liens to \$780,000 so that he could convey clear title and was in default on

the final mortgage loan.

During

these transactions, Seneviratne

alleges the trust loaned Avanzado \$71,000 due to his continued and

ongoing financial problems, which was secured by deed of trust on the property.

Seneviratne alleges Avanzado

defaulted on the loan which led to the trust foreclosing on the property.

On

July 8, 2025, Avanzado filed the operative third amended cross-complaint

against Saman Seneviratne, individually

and as trustee of Seneviratne Family Residence Trust of 2018, and Wilma Seneviratne, individually and as

trustee of Seneviratne Family Residence Trust, asserting causes of

action for quiet title, breach of contract, fraud, promissory estoppel,

declaratory relief, slander of title, cancellation of instruments, ejectment,

and wrongful foreclosure.

DISCUSSION

Cross-Defendants move for summary

adjudication of the first, second, third, eighth, ninth, tenth, eleventh and

twelfth causes of action in the third amended cross-complaint.

First Cause of Action for Quiet Title

A quiet title complaint must be verified and

must include (1) a description of the property, (2) the plaintiff's title and

the basis of that title, (3) the adverse claims to the title, (4) the date as

of which the determination is sought, and (5) a prayer for determination of

plaintiff's title. (CCP § 761.020.)

Cross-Defendants assert that the first cause

of action for quiet title fails because Cross-Complainant relinquished title to

the property via agreement in Addendum No. 4 ("AN4") to their escrow

instructions executed by the parties on May 29, 2018. AN4 provides, in

pertinent part, that the Seller, "relinquishes any and all claims of ownership

of 2601 Basil Avenue property ... Buyer is hereby granted ALL rights to the

Property..." (Appendix of Exhibits, Exh. 5.) Cross-Defendants also argue that

Avanzado lost title to the property as a result of the default and foreclosure

sale arising from the \$71,000.00 loan from Seneviratne.

In

opposition, Avanzado asserts that AN4 did not act as an immediate transfer of

title of the property from Avanzado to the trust and instead was predicated on

escrow closing, which never occurred. Avanzado also disputes the nature of the \$71,000.00 loan from Seneviratne. Avanzado asserts that the \$71,000.00 loan from Seneviratne was not a personal money loan but instead was an advance on rent under the parties rent-to-own agreement. Avanzado asserts that the trust owed more than \$71,000.00 in rent at the time of foreclosure and thus the debt was not in default, the trustee had no power of sale to exercise, and the resulting deed cannot establish title as a matter of law.

The

Court finds triable issue of facts as to the claim for quiet title. Though AN4 states that it transferred title of the property to the Buyer (the trust), the parties' actions after the execution of this agreement provide otherwise. It is unclear how the agreement could have conveyed title to the trust in 2018 but the trust then foreclosed on a lien against the property in

2024.

Additionally, Avanzado has created a triable issue of fact as to whether the \$71,000.00 was in default.

The Court denies Cross-Defendants' motion for summary adjudication of the first cause of action.

Second Cause of Action for Breach of Written Contract

The elements of a claim for breach of contract are: (1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) damage to plaintiff therefrom. Avanzado alleges that Cross-Defendants breached the written agreement to purchase the Property based on the purchase agreement dated January 16, 2018. Cross-Defendants assert that the second cause of action fails because Avanzado never performed his obligations under the parties' written agreements by failing to reduce the liens against the Property down to \$780,000. Cross-Defendants assert the claim also fails AN4 transferred title of the property to the trust and because the trust foreclosed on the property.

In

opposition, Avanzado again states that the nature of the AN4 agreement and the validity of the foreclosure are disputed. Avanzado represents that the trust never advanced the \$400,000 it had agreed to loan, which were the funds that

were to be used to retire the first trust deed and the IRS liens. This is sufficient to create a triable issue of fact as to the second cause of action for breach of written contract.

The

Court denies the motion for summary adjudication of the second cause of action.

Third

Cause of Action for Breach of Oral Contract

Cross-Defendants

assert that the third cause of action for breach of written contract fails because it is barred by the statute of frauds. Avanzado alleges the trust agreed to purchase \$26,000.00 of home theater equipment but failed to do so. Commercial Code §2201(1) provides in relevant part: "Except as otherwise provided in this section, a contract for the sale of goods for the price of five hundred dollars (\$500) or more is not enforceable by way of action or defense unless there is a record sufficient to indicate that a contract for sale has been made between the parties and signed by the party against whom enforcement is sought or by the party's authorized agent or broker."

In

opposition, Avanzado asserts the agreement is enforceable under the exceptions to the statute of frauds. Section 2201(3)(c) makes an oral contract enforceable "[w]ith respect to goods for which payment has been made and accepted or which have been received and accepted." (Cal. Com. Code, § 2201, subd. (3)(c).) Avanzado represents that Seneviratne and the Trust have possessed the projector, screen, curtain system, and speakers continuously since December 2017 and have never returned them despite Avanzado's repeated demands. This is sufficient to create a triable issue of fact as to breach of oral agreement.

The

Court denies the motion for summary adjudication of the third cause of action.

Eighth

and Twelfth Causes of Action for Slander of Title, Ninth Cause of Action for Cancellation of Instruments, Tenth Cause of Action for Ejectment, and Eleventh Cause of Action for Wrongful Foreclosure

Cross-Defendants

assert that the claims for slander of title, cancellation of instruments, ejectment and wrongful foreclosure fail because AN4 conveyed title to the trust, extinguishing all rent obligations and because Avanzado failed to reduce the liens on the property to \$780,000, relieving Cross-Defendants from the obligation of completing the purchase. Cross-Defendants also argue that Avanzado lost title to the property as a result of the default and foreclosure sale arising from the \$71,000.00 loan. As stated, Avanzado disputes the nature of the AN4 and disputes whether the \$71,000.00 loan was repaid via unpaid rent. This is sufficient to create a triable issue of fact as to these claims.

The
Court denies the motion for summary adjudication of the eighth, ninth, tenth, eleventh and twelfth causes of action.

CONCLUSION

The Court denies Cross-Defendants' motion for summary adjudication.

Cross-Defendants to give notice.